

District- Dhaka

In the Supreme Court of Bangladesh
 High Court Division
 (Criminal Miscellaneous Jurisdiction)

Criminal Revision No. _____ of 2024

In the matter of:

An application under Section 439 read with
 Section 435 of the Code of Criminal Procedure.

-And-

In the matter of:

M.A. Russel Ahmed (Remon)

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Shah Ahmed Badal, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 27th February 2024

This application under Section 439 read with Section 435
 of the Code of Criminal Procedure at the instance of sole
 accused M.A. Russel Ahmed (Remon) of Session Case No.1421

of 2020 arising out of C.R. Case No.292 of 2020 under Section 138 of the Negotiable Instrument Act, 1881 is directed against order dated 10.07.2023 passed by the learned Joint Session Judge, 7th Court, Dhaka rejecting a petition filed by the petitioner for recall of PW1 for cross examination.

Mr. Shah Ahmed Badal, learned Advocate for the petitioner submits that impugned cheque was for Tk.60,000,00/- (sixty lac) which was allegedly given by the accused to the petitioner as loan. There is no mention in the complaint or in the evidence of PW1 Anisur Rahman as to the mood of payment of above huge amount of money to the accused petitioner. At the time of cross examination of above PW some relevant questions including the source of above money and the mood, place and time of payment of above money to the accused were not put to PW1 during cross examination. As such the accused filed a petition for recall of above PW1 for further cross examination. But the learned Joint Sessions Judge, 7th Court, Dhaka failed to appreciate above materials on record properly and most illegally rejected above petition.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State submits that in order to avoid unnecessary delay the petitioner may be given an opportunity for further cross examination.

We have considered the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from record that this case was filed in 2020 and after conclusion of evidence the same has been fixed for arguments hearing. It is necessary to ensure the expeditious conclusion of trial of above case and since the amount of money of the impugned cheque is huge which was allegedly given as a loan by the complainant to the accused petitioner we hold that the ends of Justice will be met if the accused petitioner is given one opportunity for further cross examination of PW1. To avoid further delay and ensure expeditious conclusion of trial of above case we are disposing this petition with following order.

We are directing the learned Joint Session Judge, 7th Court, Dhaka to give the accused one opportunity for recall

and cross examine PW1 within 15(fifteen) days from the date of receipt of this order without granting any adjournment at the instance of the accused and then proceed with the conclusion of the trial in accordance with law.

With above direction this application under Section 439 read with Section 435 of the Code of Criminal Procedure is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER